

24NWCV02598 24NWCV02598

County: los-angeles

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BARRIOS v. GENERAL MOTORS LLC

CASE NO.: 24NWCV02598

HEARING: 08/06/2026 @ 9:30 AM

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TENTATIVE ORDER

Defendant General Motors LLC's motion to dismiss is
DENIED on procedural grounds.

Moving party to give notice.

Defendant General Motors LLC (Defendant) moves to dismiss
this complaint with prejudice.

Background

On August 19, 2024, Plaintiff filed this lemon law action
against Defendants General Motors LLC (Defendant) and Does 1 through 10,
inclusive. On October 8, 2025, following the Court's ruling granting
Plaintiff's motion for leave to amend, Plaintiff filed the operative first
amended complaint (FAC).

The FAC alleges Plaintiff purchased a 2021 GMC Sierra 1500,
VIN: 1GTU9EET4MZ286007 (Subject Vehicle) and received an express warranty from

Defendant. (FAC, ¶¶ 6-7.) The FAC alleges the Subject Vehicle was delivered to Plaintiff with defects and nonconformities to warranty including engine, transmission, and electrical defects. (FAC, ¶ 8.) The complaint asserts two causes of action: (1) violation of the federal Magnuson-Moss Warranty Act (MMWA) and (2) breach of express warranty under the Commercial Code.

On March 19, 2026, the Court denied Defendant's ex parte application to advance the instant motion. The Court granted Defendant's alternative request, to continue the trial date from April 3, 2026 to September 21, 2026.

Discussion

Defendant moves to dismiss this action with prejudice on the grounds that (1) Plaintiff has no evidence that he bought the Subject Vehicle and therefore lacks standing under the MMWA and Commercial Code; (2) Plaintiff has no evidence of the amount paid or payable for the Subject Vehicle and therefore lacks standing under the MMWA and Commercial Code; and (3) Plaintiff has failed to produce any evidence showing that the Subject Vehicle was worth less due to any alleged defects and therefore lacks standing under the MMWA.

This motion is procedurally improper.

First, as raised in Plaintiff's opposition, Defendant's motion fails to provide adequate notice for due process. Defendant's Notice of Motion does not specify under what basis it moves to dismiss. (See Code Civ. Proc., § 1010 ["the notice of a motion...must state...the grounds upon which it will be made"].) The Notice of Motion states that the complaint should be dismissed for lack of standing, without specifying the statutory or nonstatutory grounds for dismissal.

Next, and compounded by the defective notice, is the fact that a motion to dismiss based on standing defects or lack of evidence is not recognized under California law. An issue of lack of standing may be addressed by demurrer. (See *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 1004.) The Court does not construe this motion as a demurrer or motion for judgment on the pleadings because Defendant specifically moves on evidentiary grounds, which is beyond the scope of a demurrer or motion for judgment on the pleadings.

Defendant cites to *Troyk v. Farmers Group, Inc.*

(2009) 171 Cal.App.4th 1305, 1345, to argue that standing is a threshold issue and that standing requires establishing certain evidence and elements. Upon review, the Court does not find that *Troyk* provides authority for the instant motion to dismiss. The issue in *Troyk* was standing to bring a claim under the UCL pursuant to a motion for summary judgment. (See *id.*, at p. 1350 [“Based on our independent review of the parties’ summary judgment papers, we conclude *Troyk* has not carried his burden to show there is no triable issue of fact regarding the element of causation for his standing to prosecute his UCL cause of action.”].) The *Troyk* court indeed states that “[b]ecause standing goes to the existence of a cause of action, lack of standing may be raised by demurrer or at any time in the proceeding, including at trial or in an appeal.” (*Id.*, at p. 1345.) However, this Court does not construe this as creating a separate motion to dismiss as a procedural vehicle since the *Troyk* court specifically addressed standing via a motion for summary judgment.

Defendant also cites to *Limon v. Circle K Stores Inc.*

(2022) 84 Cal.App.5th 671, 704, to establish the standard for raising issues of standing. In *Limon*, the Court of Appeal reviewed an order of dismissal following a trial court’s ruling sustaining a demurrer without leave to amend on the issue of standing. (*Id.*, at p. 685.) As stated above, this motion is neither a demurrer nor capable of being treated as a demurrer.

Here, Defendant appears to move on grounds typical of a motion for summary judgment in that Defendant argues that Plaintiff cannot put forth evidence to establish his standing. Motions for summary judgment are subject to strict statutory notice procedures which are not established here. (See Code Civ. Proc., § 437c, subd. (a); see also *San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316.)

As the Court is without governing legal standards for this motion to dismiss, Defendant’s motion to dismiss is DENIED on procedural grounds